

Law & Motion

1. 9:00 AM CASE NUMBER: L23-03046

CASE NAME: DISCOVER BANK VS. DANNY LAM

*HEARING ON MOTION IN RE: MTN TO ENTER JUDGMENT PURSUANT TO CCP BY PLAINTIFF ON 9-25-25

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Plaintiff Discover Bank ("Plaintiff") filed a Motion to Enter Judgment on September 25, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement filed on April 18, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Danny Lam ("Defendant") in the amount of \$11,424.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 25, 2025 ("Supporting Declaration"), ¶15 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of **\$14,219.52 plus costs**, less credits for payments made, in the event of a default. *Id.*, **Exhibit A**, ¶¶2-6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶17. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶16.

After credit for amounts paid, there remains \$9,935.52 due and owing, plus costs of \$502.10. See Memorandum of Costs filed September 25, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$9,935.52, plus costs of \$502.10, for a total judgment of \$10,437.62.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is

hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L24-05099

CASE NAME: CAPITAL ONE, N.A. VS. MAI QUEZADA

*HEARING ON MOTION IN RE: TO SET ASIDE CCP 664 DISMISSAL AND ENTER JUDGMENT AGAINST DEFENDANT

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion to Set Aside CCP 664.6 Dismissal and Enter Judgment on October 8, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement filed on September 19, 2025 (the "Settlement Agreement"), the terms of which included payment by the defendant Mai K Quezada ("Defendant") in the amount of \$11,229.61, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Laura M. D'Anna filed October 8, 2025 ("Supporting Declaration"), ¶¶3-5 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit 1**, ¶¶1-4.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶9. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶¶4 and 10.

There remains \$11,229.61 due and owing, plus costs of \$597.00. See Supporting Declaration, ¶¶6 and 11.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$11,229.61, plus costs of \$597.00, for a total judgment of \$11,826.61.
4. Any prior dismissal entered herein against the Defendant is hereby set aside.